Fort Bend County District Court

Cause No. 2025-CV-0025

Ryan Roberts, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	April 16, 2025
Plaintiff's counsel:	Carlos Fox, Carter & Smith Injury Lawyers

PARTIES

Plaintiff Ryan Roberts is an individual residing in Texas who was the driver of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact insurance business in the State of Texas, which issued the policy of automobile coverage under which Plaintiff seeks benefits and against which this claim is brought.

FACTS

On June 1, 2024, Plaintiff was lawfully stopped in traffic at an intersection in Katy, Texas, waiting for the signal to change. A second vehicle, operated by a driver insured by Defendant, approached from behind at a speed too great for the conditions and struck the rear of Plaintiff's vehicle with considerable force. The impact pushed Plaintiff's vehicle forward and jolted Plaintiff's body violently against the seat and restraint system. Plaintiff reported the collision to Defendant promptly, provided a recorded statement, and submitted the information Defendant requested to evaluate the claim.

NEGLIGENCE

The driver of the insured vehicle owed Plaintiff a duty to operate that vehicle with ordinary care, to maintain a safe following distance, to keep a proper lookout, and to control speed in light of traffic conditions. That driver breached those duties by failing to stop, by following too closely, and by failing to apply brakes in time to avoid the collision. Defendant is liable for the negligence of its insured under the terms of the policy and applicable Texas law, and Defendant has failed to fairly and promptly evaluate and pay the covered loss as required by the Texas Insurance Code.

DAMAGES

As a direct result of the collision, Plaintiff sustained neck and back strain, accompanied by pain, stiffness, limited range of motion, headaches, and muscle spasms. Plaintiff sought medical evaluation and treatment, incurred reasonable and necessary medical expenses, lost time from work, and continues to experience pain and reduced function in daily activities. Plaintiff seeks recovery of economic and non-economic damages witihn the limits of the policy, together with statutory interest, court costs, and attorney's fees as permitted by law, in an amount of $113,000.00.